



CHAPTER cxxxvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Burgh of Leith. A.D. 1904.
[22nd July 1904.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Leith Burgh Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

LEITH BURGH.

Provisional Order to confer further powers on the Provost Magistrates and Councillors of the Burgh of Leith.

WHEREAS the burgh of Leith is under the government for municipal purposes of the provost magistrates and councillors thereof (in this Order called "the Town Council"):

And whereas the links of Leith are to an increasing extent being used as a place of public resort and promenade around which a large number of dwelling-houses and other buildings have been erected and are in course of construction:

And whereas the playing of the games of football and golf on the said links is incompatible with the public safety and it is expedient to discontinue the same and make other and better provision in regard to facilities for and the regulation of football golf and other games in parks and other open spaces within or beyond the burgh:

And whereas it is expedient that the further powers hereinafter mentioned should be conferred upon the Town Council:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

PART I.

PRELIMINARY.

1. This Order may be cited as the Leith Burgh Order 1904 and shall come into operation at the date of the passing of the Act confirming the same which date is hereinafter referred to as "the commencement of this Order."

Short title
and com-
mencement
of Order.

2. This Order is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Police.
- Part III.—Electrical.
- Part IV.—Public Parks &c.
- Part V.—Cemeteries.
- Part VI.—Miscellaneous.

A.D. 1904.

Division of
Order into
Parts.

3. In this Order “the burgh” means the burgh of Leith within the boundaries for the purpose of the Burgh Police (Scotland) Acts 1892 to 1903 “the Town Council” means the provost magistrates and councillors of the burgh acting in any capacity “the corporation of Edinburgh” means the lord provost magistrates and councillors of the city and royal burgh of Edinburgh and “the dock commissioners” means the commissioners for the harbour and docks of Leith.

Interpreta-
tion.

PART II.

POLICE.

4. The Town Council may in manner provided by the Burgh Police (Scotland) Acts 1892 to 1903 from time to time make and rescind such byelaws as they think fit for the following purposes (that is to say) :—

To prevent or suppress betting bookmaking or wagering in or on any street within the burgh ;

To prohibit or prevent any person or persons using any such street for betting bookmaking gaming or wagering or offering to engage in betting bookmaking gaming or wagering in or on any such street ; and

To impose penalties for breach or contravention of any such byelaws not exceeding forty shillings for each offence :

Any penalties under this section may be prosecuted for and recovered at the instance of the burgh prosecutor in accordance with the provisions of the Acts last mentioned as read with this section and the person found liable in any penalty under this section shall failing payment thereof be liable to imprisonment for a period not exceeding thirty days.

The expression “street” in this section and in section 51 of the Burgh Police (Scotland) Act 1903 shall within the burgh have the meaning assigned to it in section 381 of the Burgh Police

A.D. 1904. (Scotland) Act 1892 and shall include common stair and common passage Provided that nothing contained in this section or in the extended application thereby effected of section 51 of the Burgh Police (Scotland) Act 1903 shall prejudice or affect any byelaws lawfully made by the dock commissioners or any prosecution for offences under such byelaws.

PART III.

ELECTRICAL.

Agreements
with respect
to supply
of electric
energy
within and
beyond
burgh.

5. The Town Council on the one hand and the corporation of Edinburgh on the other hand may enter into and carry into effect agreements for the supply of electric energy by the Town Council within the city of Edinburgh and by the corporation of Edinburgh within the burgh and may for the purposes of any such agreement or agreements respectively exercise within the city of Edinburgh and the burgh as the case may be the powers and rights which they at present respectively possess under the Leith Corporation Electric Lighting Order 1897 and the Edinburgh Corporation Electric Lighting Order 1891 Provided that any such agreement shall be subject to the approval of the Board of Trade and any such supply within the city of Edinburgh to the provisions of the Edinburgh Corporation Electric Lighting Order 1891 and within the burgh of the Leith Corporation Electric Lighting Order 1897 and any works constructed for the purpose of such supply shall be subject to all provisions for the protection of the telegraphic lines of the Postmaster-General and his rights in respect thereof contained in those Orders.

Electric
fittings.

6.—(1) The Town Council may within their area of supply under the Leith Corporation Electric Lighting Order 1897 agree with the owner lessee or occupier of any house building or premises (in this section called "the consumer") to wire and fit up on and in such house building or premises the necessary wires fittings and apparatus for the supply of electric energy (hereinafter in this section called "the installation") free of cost to the consumer.

(2) The installation shall be the property of the Town Council unless and until paid for as hereinafter provided.

(3) The consumer may in his option at or after the expiration of five years from the date of installation purchase the installation on payment of the original cost price thereof with an addition of twenty per centum and a deduction of one and a half per centum per annum from the date of installation for depreciation and such

original cost price shall be taken to be such price as shall be certified by the town clerk or by some other officer of the Town Council duly authorised in that behalf provided that the option to purchase shall not include any main fuze or meter. A.D. 1904.

(4) The Town Council shall not be liable for any repairs to or maintenance of the installation except that they shall without charge make good or cause to be made good all defects in materials or workmanship during a period of six months from the date of installation.

(5) The consumer shall until purchase as aforesaid pay quarterly to the Town Council for the use of the installation such sum not exceeding (subject to a minimum payment in any year of one shilling for each eight candle power lamp or its equivalent installed) one penny per Board of Trade unit for every unit of energy supplied to the said house building or premises as may be fixed by the Town Council and such sum may be collected and recovered by the Town Council along with the charges for energy supplied by them.

(6) If the consumer or other occupier for the time being of the said house building or premises shall cease to take a supply of energy to the said house building or premises from the Town Council or shall neglect or refuse to pay for the use of the installation as aforesaid the Town Council may at any time enter upon the said house building or premises and remove and take away the installation. Provided that they shall make good or cause to be made good any damage they may by such removal do to the house building or premises.

(7) The terms specified in this section for the supply of the installation by the Town Council may be altered by agreement between the Town Council and any consumer and the terms as so altered shall have effect accordingly.

(8) Nothing in this section contained shall be deemed to authorise the Town Council to manufacture electric apparatus.

(9) The purposes of this section shall be deemed to be purposes of the Leith Corporation Electric Lighting Order 1897.

7. The Town Council may provide and let out on hire within the burgh electric motors machinery and appliances for utilising electric energy generated by them for power heating or other purposes and may make in respect thereof such charges as they may think fit. Power to Town Council to provide and let electric motors &c.

A.D. 1904.

Town Council may refuse to supply electrical energy in certain cases.

8. The Town Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Town Council in respect of a supply to the same or other premises.

As to supply of electricity where consumer has separate supply.

9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 and the Electric Lighting (Scotland) Act 1890 a person shall not be entitled to demand from the Town Council a stand-by supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Town Council such minimum annual sum as will give to the Town Council a reasonable return on the capital expenditure and other standing charges incurred by the Town Council to meet the possible maximum demand of such person. In case the Town Council and the person demanding such supply of electrical energy shall fail to agree the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbiter by the Board of Trade.

Date at which electric lighting accounts to be made up.

10. The date at which the accounts of the Town Council acting under the Leith Corporation Electric Lighting Order 1897 shall be made up shall notwithstanding anything contained in section 9 of the Electric Lighting Act 1882 be the fifteenth day of May in each year.

Byelaws as to electric fittings.

11. In addition to the byelaws which the Town Council are by section 6 of the Electric Lighting Act 1882 authorised to make rescind alter or repeal the Town Council may for securing the safety of the inhabitants of the Burgh and for the prevention of fires make rescind alter or repeal byelaws with respect to any wires apparatus and fittings in any building or premises supplied with electricity by the Town Council and the provisions of section 6 of the Electric Lighting Act 1882 with respect to penalties for breach of byelaws and recovery thereof and confirmation of byelaws shall extend and apply to any byelaws made by the Town Council under this section.

PART IV.

PUBLIC PARKS &c.

Prohibition of football and golf on Leith Links.

12. From and after the commencement of this Order it shall not be lawful to play football or golf or to kick hit strike or propel as in either of these games any ball or other similar thing in or over Leith Links.

13. From and after the commencement of this Order the Town Council may notwithstanding anything to the contrary contained in section 33 of the Act 1 and 2 Victoria chapter 55 (Public) or in Schedule (A) to that Act annexed or in the Order confirmed by the Secretary for Scotland's Leith Provisional Order Confirmation Act 1886 devote Leith Links to the purposes of and enclose lay out and maintain the same as a park or place of public recreation under the Public Parks (Scotland) Act 1878 and this Order.

A.D. 1904.
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 Formation of
 Leith Links
 into public
 park.

14. The Town Council may by resolution from time to time regulate the playing of cricket on all or any portion of Leith Links and shall give notice of such resolution by affixing a copy thereof on a board on some conspicuous part of the links.

Regulation
 of cricket on
 Leith Links.

15.—(1) Subject to the provisions of the section of this Order of which the marginal note is "Prohibition of football and golf on Leith Links" the Town Council may from time to time set apart enclose and adapt any reasonable portion or portions of the parks recreation grounds or open spaces belonging to them or under their control (in this section referred to as "the parks") for cricket tennis bowls skittles quoits and other games pleasure walks and children's playgrounds the riding driving and exercise of horses for cycling and for music and other entertainments and any ponds or ornamental waters thereon for skating curling sailing of boats or model yachts or any reasonable portion or portions of the parks for any form of recreation and amusement.

Games &c.
 in parks.

(2) The Town Council may acquire enclose and adapt any ground whether within or beyond the burgh suitable for such purposes construct thereon or in the parks any ponds and ornamental waters provide apparatus appliances and equipment for the purposes aforesaid and music concerts and entertainments and may from time to time erect and maintain pavilions bandstands waiting rooms refreshment rooms stores shelters baths lavatories and other buildings for the convenience of players or the general public and appoint officers servants and attendants for taking charge thereof.

(3) The Town Council may from time to time let and enclose if necessary for any special or temporary purpose any reasonable portion or portions of the parks and the right to provide apparatus appliances and equipment for purposes of recreation or amusement on such terms and subject to such conditions and for such periods as they think fit.

A.D. 1904.
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(4) The Town Council or their lessees may demand and take reasonable charges for admission to or the use of any reasonable portion or portions of the parks set apart for any of the purposes before mentioned and for admission to or the use of pavilions waiting rooms refreshment rooms stores shelters baths lavatories and other conveniences and for the use of apparatus appliances and equipment.

(5) The Town Council may demand and take reasonable charges for admission into any museum conservatory winter garden collection of natural history science or art and other similar places and buildings under their control.

(6) The Town Council may defray the cost of anything done by them under this section out of the assessment provided by the Public Parks (Scotland) Act 1878 or any other assessment leviable within the burgh applicable to all or any of the purposes aforesaid Provided that the dock commissioners shall be exempt from any assessment under and for the purposes of this section.

(7) The provisions of this section shall have effect within the burgh in place of those of section 44 of the Burgh Police (Scotland) Act 1903 and the provisions of section 339 of the Burgh Police (Scotland) Act 1892 as amended by the Burgh Police (Scotland) Act 1903 shall apply to this section.

Penalties
(Public
Parks).

16. The provisions of sections 487 and 499 of the Burgh Police (Scotland) Act 1892 shall apply to any contravention of any provision of the sections of this Part of this Order of which the marginal notes are "Prohibition of football and golf on Leith Links" and "Regulation of cricket on Leith Links" or any resolution of the Town Council thereunder and the provisions of the Burgh Police (Scotland) Acts 1892 to 1903 with respect to the recovery of penalties and to imprisonment on failure to pay any such penalty shall also apply.

Saving.

17.—(1) Nothing in this Order shall prejudice or affect any right of road and entrance to the one thousand four hundred and eighty feet of feuing ground as described in paragraph 2 (5) of Schedule (A) annexed to the Act 1 and 2 Victoria chapter 55 (Public).

(2) Subject to the provisions of this Order nothing herein contained shall prejudice or affect any of the rights powers privileges and provisions now in force of or under the Act 1 and 2 Victoria chapter 55 (Public).

PART V.

A.D. 1904.

CEMETERIES.

18.—(1) From and after the commencement of this Order Cemeteries.
it shall not be lawful for any person except with the consent in writing of the Town Council to lay out make or construct any burial ground or cemetery or crematorium or to extend or enlarge any existing burial ground or cemetery within the burgh. The provisions of this section shall not apply to any lands within the burgh which have prior to the first day of January one thousand nine hundred and two been acquired or are held for the purpose of extending any existing burial ground or cemetery within the burgh.

(2) For the purposes of the Burial Grounds (Scotland) Acts 1855 to 1886 the burgh shall be deemed to be one parish.

19. The Town Council may for the protection of the public health and the maintenance of public decency from time to time make byelaws for the regulation and preservation of the burial grounds and cemeteries within the burgh and may defray the expense of carrying this section into execution out of the assessment authorised to be levied under the provisions of the Burial Grounds (Scotland) Acts 1855 to 1886. Provided that such byelaws shall before coming into operation be confirmed by the Secretary for Scotland. Every person failing to comply with any of such byelaws shall for every such offence be liable to a penalty not exceeding five pounds. Byelaws for cemeteries.

20. The provisions of the two immediately preceding sections of this Order (except subsection (2) of section 18) shall not apply to the cemeteries of or to the Leith Cemetery Company Limited and the Eastern Cemetery Company Limited. Saving for existing cemetery companies.

21. Every interment in any burial ground or cemetery within the burgh shall be registered in register books to be provided and kept for that purpose by the person to whom such burial ground or cemetery belongs such register books shall specify the place of each interment within such burial ground or cemetery with reference to a plan or plans which shall also be provided and kept for such purpose by the person to whom the burial ground or cemetery belongs and on which plan every lair or burying place shall be numbered and the register books and plan or plans shall at all reasonable times be open to inspection by the medical officer of health or the sanitary inspector for the burgh without fee or Burial registers to be kept.

A.D. 1904. — payment Every person failing to comply with the provisions of this section shall for every such offence be liable to a penalty not exceeding fifty pounds.

Interments. 22. It shall not be lawful except with the consent of the Town Council to inter or cause or permit to be interred any human remains in any place within the burgh other than in a public burial ground or cemetery Every person who does or causes or wilfully permits to be done any act in contravention of this section shall for every such offence be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding five pounds.

Burial ground assessment. 23. The Town Council may impose assess levy and recover any charges or assessments required to be levied for the purposes of the Burial Grounds (Scotland) Acts 1855 to 1886 or of this part of this Order under the provisions of the Public Health (Scotland) Act 1897 and along with and as part of the general assessment leviable under that Act.

Penalties (Cemeteries). 24.—(1) Any offence against or any failure to comply with the provisions of this Part of this Order or of any byelaw made thereunder may be prosecuted and any fine or penalty together with the expenses of process may be recovered at the instance of the Procurator Fiscal of the county before the sheriff under the provisions of the Summary Jurisdiction (Scotland) Acts.

(2) Every person found liable in any such fine or penalty shall failing payment thereof with expenses immediately or within a specified time as the case may be be liable to be imprisoned in terms of subsection (b) of section 6 of the Summary Jurisdiction (Scotland) Act 1881.

PART VI.

MISCELLANEOUS.

Exemption of Leith Hospital from burgh assessments. 25. The Leith Hospital shall not be assessed rated or liable to pay or contribute to any rate or assessment leviable by the Town Council within the burgh in respect of any buildings lands or property of any description occupied by the hospital or used for the purposes thereof.

Superannuation fund. 26. The Town Council may contribute annually or otherwise from the revenues received by them in connection with any of their departments such sums as they may think fit towards the fund of any friendly society superannuation provident sickness or other similar fund that has been or may be instituted for the benefit of

the servants workmen and other persons employed by the Town Council in such departments and the Town Council may as a condition of any of the said servants workmen and other persons becoming members of any such friendly society or being entitled to receive any benefit from such superannuation provident sickness or other fund require such servants workmen and other persons to contribute to such friendly society superannuation provident sickness or other fund. A.D. 1904.

27. Any scheme for the establishment of a friendly society superannuation provident sickness or other similar fund under this Order shall not come into operation until the Town Council shall in respect of such society or fund have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 section 41 and sections 70 to 73) so far as they are applicable and are not inconsistent with the provisions of this Order shall apply :—

Registration of scheme for establishment of fund &c. under Friendly Societies Act.

- (a) As if the Town Council were a society to which that Act applies and were the trustees of such society ;
- (b) As if the scheme were the rules of such society ;
- (c) As if the superannuation or provident funds were the funds of such society ; and
- (d) As if the contributors to the funds were the members of such society.

28.—(1) The Town Council may if they think fit grant a gratuity to any of their officers or servants who may through bodily or mental infirmity duly certified by a legally qualified medical practitioner become incapable of performing his duty or to the widow or family of any such officer or servant who may die in their service.

Power to grant gratuities.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on which the salary or emoluments of the officer or servant would have been charged or paid if he had continued in his office or service and shall not exceed the amount of one month's pay for every completed year of approved service.

29. The Town Council on the one hand and the corporation of Edinburgh on the other hand may in respect of roads and streets situate partly within the burgh and partly within the city of Edinburgh enter into and carry into effect agreements and arrangements in regard to the lighting cleansing draining and paving by the Town Council or the corporation of Edinburgh of such roads or streets or portions of any such road or street situate within the

Agreements with corporation of Edinburgh.

A.D. 1904. city of Edinburgh or the burgh as the case may be or otherwise in relation thereto and the Town Council and the corporation of Edinburgh may make contributions to each other in respect of the matters aforesaid and for such purposes apply their rates revenues and assessments as if such roads or streets or portion thereof were situate within their respective districts.

Parliamentary costs incurred in 1896.

30. The Town Council may include the amount of the costs and expenses incurred by them in respect of their opposition to the Edinburgh Extension Bill 1896 and the legal proceedings following thereon and of any moneys already borrowed and the interest thereon for payment of such costs and expenses amongst the expenses for which they may levy assessments within the burgh and the Town Council may determine out of which fund or assessment under their control or leviable by them such costs and expenses shall be paid and whether such costs and expenses shall be paid off in one or more (but not exceeding ten) years Provided that the dock commissioners shall not be liable to or be required to make any payment or contribution to such costs and expenses under this section.

Exemption of Crown property.

31. Without prejudice to any existing right of His Majesty there shall be exempted from the provisions of this Order every building structure or work vested in or in the occupation of His Majesty either beneficially or as part of the hereditary revenues of the Crown or in trust for the public service or for public purposes also any building structure or work vested in or in the occupation of any department of His Majesty's Government for public purposes or for the public service.

Costs of Order.

32. All costs charges and expenses of and incident to the preparing obtaining and passing of this Order shall be paid out of any assessment levied by the Town Council or out of the common good of the burgh or any sums to be borrowed under the powers conferred by any Order or Act of Parliament or one or other or all of them proportionally as the Town Council shall determine Provided that any money borrowed for paying any such costs charges and expenses shall be repaid within five years from the commencement of this Order.

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